

Attorney Consultation Form

Outreach to the PFD Call Sheet: Phone, Email and 506(c) Compliance

Attorney:	_____	Date:	_____
Firm:	_____	Meeting type:	☐ Phone ☐ Video ☐ In person
Prepared by:	_____	Attendees:	_____

Background for counsel

PFD Capital Partners (Irvine, CA) is raising capital under Rule 506(c): \$100,000 minimum, verified accredited investors only. The investment funds medical receivables for personal-injury doctors with a 3:1 collateral setup; the return is described as a **target**, never guaranteed. We built a call sheet of 239 professional firms in 40+ states (CPAs, estate and trust attorneys, independent RIAs, physician advisors, a few family offices and angel groups). We want to call their published main business lines and email general business addresses to ask whether they would introduce accredited clients. We are not asking them to buy. Numbers came from public search listings and are not yet verified on each firm's site. Attached: PFD_Call_Sheet.pdf and PFD_Call_Sheet_Details.xlsx.

A. Phone calls

1. Do federal Do-Not-Call rules (TCPA and the FTC Telemarketing Sales Rule) and California rules apply to calls to a firm's main business line? Is there a business-to-business exemption, and does it hold for a securities offering?

☐ Yes ☐ No ☐ Depends / need more info ☐ Action item

Attorney notes:

2. Do we still need to scrub against the National and California Do-Not-Call lists and keep an internal do-not-call list? Do any states on our list have their own rules?

☐ Yes ☐ No ☐ Depends / need more info ☐ Action item

Attorney notes:

3. What are the permitted calling hours, and who may place the calls?

☐ Yes ☐ No ☐ Depends / need more info ☐ Action item

Attorney notes:

4. Do we need to disclose or get consent for call recording? Which states require two-party consent?

☐ Yes ☐ No ☐ Depends / need more info ☐ Action item

Attorney notes:

5. What must a caller say at the start (company name, purpose), and what must they not say about returns, collateral and safety?

☐ Yes ☐ No ☐ Depends / need more info ☐ Action item

Attorney notes:

6. If a number turns out to be an individual's direct line or mobile, what is the rule?

☐ Yes ☐ No ☐ Depends / need more info ☐ Action item

Attorney notes:

B. Emails

7. Does CAN-SPAM apply to email to a firm's general business address? What must every email include (physical address, opt-out, accurate sender)?

☐ Yes ☐ No ☐ Depends / need more info ☐ Action item

Attorney notes:

8. Do California or other states limit emailing a named partner, as opposed to a general inbox?

☐ Yes ☐ No ☐ Depends / need more info ☐ Action item

Attorney notes:

9. Which address sources are safe (published on the firm's own site) and which are not (harvested or purchased)?

☐ Yes ☐ No ☐ Depends / need more info ☐ Action item

Attorney notes:

10. How long may we keep a contact on the list, and how fast must we honor an opt-out?

☐ Yes ☐ No ☐ Depends / need more info ☐ Action item

Attorney notes:

C. Securities rules (506(c))

11. Does 506(c) general solicitation cover outreach to firms? Must written materials be approved before use?

☐ Yes ☐ No ☐ Depends / need more info ☐ Action item

Attorney notes:

12. If a firm introduces a client, what must be done before taking money (verification method, subscription documents, bad-actor checks)?

☐ Yes ☐ No ☐ Depends / need more info ☐ Action item

Attorney notes:

13. Can we offer a referral firm anything of value? Could a fee make the firm an unregistered broker-dealer or put our exemption at risk? What is the compliant route?

☐ Yes ☐ No ☐ Depends / need more info ☐ Action item

Attorney notes:

14. What may the referring firm say to its clients? Do CPA, attorney and RIA professional rules limit recommending investments or accepting referral compensation?

☐ Yes ☐ No ☐ Depends / need more info ☐ Action item

Attorney notes:

15. Does contacting firms in other states trigger notice filings or registration? Which states, and when?

☐ Yes ☐ No ☐ Depends / need more info ☐ Action item

Attorney notes:

16. Which Form D and California notice filings are required, and by when?

☐ Yes ☐ No ☐ Depends / need more info ☐ Action item

Attorney notes:

D. Content and claims

17. Please review our scripts, emails, landing page and FAQ (04_outreach_playbook.md, landing_page.html).

☐ Yes ☐ No ☐ Depends / need more info ☐ Action item

Attorney notes:

18. What must we have on hand to substantiate our claims about the 3:1 collateral and the target return?

☐ Yes ☐ No ☐ Depends / need more info ☐ Action item

Attorney notes:

19. What risk disclosures must accompany any mention of the return?

☐ Yes ☐ No ☐ Depends / need more info ☐ Action item

Attorney notes:

20. Can we describe the offering to a referral firm before they have seen the PPM, or only after?

☐ Yes ☐ No ☐ Depends / need more info ☐ Action item

Attorney notes:

E. Health-care angle

21. Because investor money funds personal-injury doctors, are there anti-kickback, fee-splitting or lien-related issues if physician advisors, practice brokers or medical groups refer investors?

☐ Yes ☐ No ☐ Depends / need more info ☐ Action item

Attorney notes:

22. Should the investor message be kept separate from what we say to providers?

☐ Yes ☐ No ☐ Depends / need more info ☐ Action item

Attorney notes:

F. Records and process

23. What records should we keep for each contact (date, who, what was said, consent, DNC check)?

☐ Yes ☐ No ☐ Depends / need more info ☐ Action item

Attorney notes:

24. Should we limit the call sheet (drop wirehouse-affiliated firms, certain states) until you sign off?

☐ Yes ☐ No ☐ Depends / need more info ☐ Action item

Attorney notes:

25. Do we need an internal compliance policy for calls and emails, and who should review it?

☐ Yes ☐ No ☐ Depends / need more info ☐ Action item

Attorney notes:

Written go / no-go by channel

Channel	Approved	With conditions	Not approved	Conditions / notes
Phone calls to firms' main business lines	☐	☐	☐	
Email to firms' general business addresses	☐	☐	☐	
Email / calls to named partners	☐	☐	☐	
Contact with individual investors	☐	☐	☐	
Paying or offering referral compensation	☐	☐	☐	
Outreach in states outside California	☐	☐	☐	

Steps to complete before the first call (attorney checklist)

- ☐ 1. _____
- ☐ 2. _____
- ☐ 3. _____
- ☐ 4. _____
- ☐ 5. _____
- ☐ 6. _____
- ☐ 7. _____
- ☐ 8. _____

Our to-do list before the meeting

- ☐ Scrub call sheet numbers against National and California Do-Not-Call lists (needs our registered account).
- ☐ Spot-check about 20 numbers on firms' own websites.
- ☐ Bring current scripts, emails and landing page.
- ☐ List the states we most want to reach: _____

Attorney signature: _____ Date: _____